

25NNCV01210 25NNCV01210

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-08-19
Motion: MOTION FOR ATTORNEY FEES
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Case Number: 25NNCV01210 Hearing Date: August 19, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

ARMEN
MARGARYAN,

Plaintiff(s),

vs.

GENERAL
MOTORS LLC,

Defendant(s).

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CASE NO.: 25NNCV01210

[TENTATIVE]

ORDER RE: MOTION FOR ATTORNEY FEES

Dept.

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8:30

a.m.

August

19, 2026

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I.

INTRODUCTION

On March 23, 2026, plaintiff Armen

Margaryan ("Plaintiff") filed this motion for attorney fees. Plaintiff and defendant

General Motors LLC ("Defendant") entered into a settlement agreement and

release that resolved Plaintiff's claims related to the purchase of a new 2023

Chevrolet Bolt EV.

Plaintiff seeks a fee award of \$60,817.50

with \$3,088.64 in costs. The fee award includes a lodestar amount of \$40,545 as

well as a 1.5 multiplier of \$20,272.50.

On August 6, 2026, Defendant filed an opposition brief.

Plaintiff filed a reply brief on August 12, 2026.

II. DISCUSSION

A. Lodestar Calculation and Multiplier

Pursuant to Civil Code section 1794(d), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” “The lodestar method is applicable to calculating attorney fees under section 1794, subdivision (d).” (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 997.)

Plaintiff’s counsel, Margarita N. Beoglyan, declares that she bills at an hourly rate of \$450. Defendant does not meaningfully challenge the hourly rate but argues that that the number of hours billed is unreasonable and should be reduced. (Opp., p. 11.) Defendant identifies several categories of billing entries that it contends have been padded due to Plaintiff’s counsel’s use of templates, including the complaint, initial disclosures, written discovery, and this fee motion. Defendant also argue that time should be reduced for the preparation for “boilerplate form filings.”

Plaintiff’s counsel billed 3.2 hours to prepare the Complaint, court forms, and exhibits. This amount of time is excessive because the Complaint does not include more than a few paragraphs of case-specific allegations, with the longest case-specific paragraph having already been drafted when Plaintiff’s counsel prepared a demand letter before this action

commenced. (Compl., ¶ 8; Motion, Ex. 3.) The billing entry also identifies several secretarial tasks such as scanning documents and “preparing” documents to be filed. Therefore, the Court grants Defendant’s request for a reduction of 2.7 hours for the preparation of the Complaint in the amount of \$1,215.

Next, Plaintiff’s counsel billed 3.4 hours to prepare initial disclosures and document production. This is unreasonable considering Plaintiff’s counsel already performed numerous reviews of the file in the weeks before and concluded that the client provided all necessary documents and information. Also, Plaintiff’s counsel is a seasoned attorney who has worked exclusively on cases involving lemon law for five years as a law clerk and for over twelve years as an attorney. (Motion, Beoglyan Decl., ¶¶ 39-42.) In light of this amount of experience and the time previously spent “reviewing” the file, the Court grants Defendant’s request for a reduction of 2.9 hours, amounting to \$1,305, based on Plaintiff’s counsel’s inefficiency.

Third, the Court agrees with Defendant that Plaintiff’s counsel should not be compensated for preparing duplicative discovery requests that sought documents Defendant was already statutorily obligated to disclose. The billing entry for 1.4 hours is therefore reduced by 1.2 hours (\$540) to 0.2 hours, to accommodate the amount of time spent to draft a routine Notice of Case Management Conference.

Fourth, Plaintiff’s counsel billed 0.9 hours to draft, review, sign, and serve objections to Defendant’s notice of Plaintiff’s deposition. Plaintiff’s counsel also spent 0.7 preparing, filing, and serving a case management statement, an hour preparing and serving a notice of the case management conference order, a notice of posting jury fees, and 0.5 hours preparing a notice of settlement. Each of these tasks should not have taken so long to complete and the Court grants Defendant’s request to reduce the amount of time billed by 2.3 hours, amounting to a reduction of \$1,035.

Fifth, Plaintiff’s counsel billed 26.9 hours to prepare this fee motion. This amount of time is excessive because the brief does not contain much, if any, case-specific discussion or include any complex legal analysis. The billing entry is therefore reduced by 24.9 hours in the amount of \$11,205.

Sixth, Plaintiff estimates another 8.5

hours will be spent on reviewing Defendant's opposition brief, preparing a reply, and attending the hearing. Only fees actually incurred are recoverable and Plaintiff's counsel did not submit a supplemental declaration stating the amount of time she actually spent reviewing Defendant's brief or drafting the reply brief; therefore, the Court refuses to award the "projected" amount of time spent on those tasks and reduces the requested lodestar by \$3,825.

Defendant also argues that several other categories of billing entries are excessive and unreasonable or otherwise noncompensable as clerical work. These entries include: (1) work performed before the Complaint was filed from October 1, 2024 to February 24, 2025, (2) unsuccessfully opposing Defendant's sanctions motion and then complying with the Court's sanctions order, and (3) arranging for the post-settlement surrender of Plaintiff's vehicle.

As for pre-filing work, Defendant only specifically identifies tasks such as "client intake, preparation of Counsel's own retainer agreement, follow-up correspondence with [Defendant]'s pre-suit claim handlers, and even 0.5 hours in which Counsel '[d]rove to the post office' to mail the demand letter." (Opp., p. 9.) Therefore, the Court only considers these three tasks. (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488 ["In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence."]))

The Court agrees that work performed before a retention agreement is not recoverable and nor is it appropriate for counsel to be compensated for driving to the post office to mail letters, copying documents, or performing clerical tasks such as calendaring. Therefore, the Court reduces the requested lodestar amount by \$1,125, which is 2.5 hours of Plaintiff's counsel's time at an hourly rate of \$450.

However, the Court declines to exclude any time spent corresponding with Defendant's claim handlers, which is connected with the commencement and prosecution of the action. If Defendant had settled the action before Plaintiff filed suit, these amounts would not be recoverable. (*Dominguez v. Am. Suzuki Motor Corp.* (2008) 160 Cal.App.4th 53,3 57-61.)

Next, Defendant argues that Plaintiff's counsel should not be compensated for the 13 hours she spent unsuccessfully opposing Defendant's motion for sanctions or the 1.9 hours billed to preparing, mailing, and tracking delivery of the sanctions check she was ordered to pay. Defendant's request is granted because this time was not reasonably incurred in the "commencement or prosecution of this action" but discovery misconduct. Moreover, the act of preparing, mailing, and tracking the sanctions check is clerical and not compensable for that reason alone. The lodestar amount is therefore reduced by \$6,705, consisting of 14.9 hours.

Plaintiff's counsel also billed 3.5 hours to coordinate and attend the post-settlement surrender of Plaintiff's vehicle, including 2.1 hours for travel to and from the dealership. It is unclear why accompanying a client to surrender a vehicle requires the supervision of an attorney and is not a purely administrative task, especially when the settlement agreement and release was already executed by the parties. Therefore, \$1,575 is deducted from the requested fee award.

Last, Defendant argues that there are various entries for incremental communications and clerical tasks that should not be allowed in the computation of Plaintiff's fee award. Since Defendant fails to identify any specific entries, however, Defendant fails to provide evidence that the communications and tasks are not compensable.

After reviewing the motion, opposition, and reply, the Court concludes there is no basis for awarding a 1.5 multiplier because there is nothing distinguishing this case from any other lemon law case. The case settled in less than a year, having been filed on February 24, 2025, and there is no evidence that it caused Plaintiff's counsel to turn down other work.

Accordingly, the Court awards attorney's fees in the amount of \$12,015.

B.
Costs

Plaintiff claims \$3,088.64 in costs while Defendant argues that \$2,494.36 of that amount is not recoverable. Defendant challenges Plaintiff should not recover: (1) \$1,500 in sanctions, (2) \$165.89

in jury fees, (3) \$11.76 in estimated filing fees, (4) \$781.25 for "copy/facsimile/mail (3,125 pages)", (5) \$23.70 for certified mail, and (6) \$11.76 to file the opposition to Defendant's motion for sanctions.

Plaintiff's jury fee deposit was reasonably necessary to this action in order to preserve his right to a jury trial, but the other items listed by Defendant are either unsubstantiated overhead costs or costs associated with Plaintiff's abuse of the discovery process. Accordingly, the Court reduces Plaintiff's cost award by \$2,328.47, resulting in a total award of \$760.17.

III.

CONCLUSION

Plaintiff's motion for attorney's fees and costs is GRANTED in part in the amount of \$12,775.17, consisting of \$12,015 in attorney's fees and \$760.17 in costs.

Plaintiff to
give notice.

Dated
this 19th
day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the

tentative as the final order or place the motion off calendar.